

2017 WL 4316213 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Damon BIGNON, Plaintiff,

v.

THE CITY OF NEW YORK, Detective **Abdiel Anderson**, Shield No. 1429, Undercover Police Officer No. C0212, Detective David Demelia, Shield No. 2215, Detective Simon Laine, Lieutenant Christopher Vonkessel, Undercover Police Officer No. 336, and Police Officers John Does Numbers One Through Ten, Defendants.

No. 0028719-2017.
September 18, 2017.

The Basis of Venue is: Location of Incident
Plaintiff designates Bronx County as the place of trial.

Summons

[Stuart E. Jacobs](#), Esq., Jacobs & Hazan, LLP., 30 Vesey Street, 4th Floor, New York, New York 10007, (212) 577-2690, for plaintiff.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York September 17, 2017

Plaintiff DAMON BIGNON, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, [42 U.S.C. Sections 1983](#) and [1988](#), and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 24, 2015 at approximately 3:00 a.m., plaintiff Damon Bignon, while lawfully present in the vicinity of 166th Street and Sheraton Avenue, Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Additionally, plaintiff was assaulted, battered, and subjected to the use of excessive force by the defendant police officers when slammed him against the wall, causing plaintiff to suffer severe pain and physical injuries. Plaintiff was subjected to malicious prosecution and denied the right to due process and a fair trial. All criminal charges brought against plaintiff were dismissed and terminated in plaintiffs favor on or about June 20, 2016. Plaintiff was deprived of his constitutional and common law rights when

the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, strip searched, maliciously prosecuted, denied plaintiff the right to due process and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DAMON BIGNON is a resident of the state of New York.
3. DETECTIVE **ABDIEL ANDERSON**, Shield No. 1429, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. DETECTIVE **ABDIEL ANDERSON**, Shield No. 1429, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.
5. DETECTIVE **ABDIEL ANDERSON**, Shield No. 1429, is being sued in his individual and official capacity.
6. UNDERCOVER POLICE OFFICER No. C0212 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. UNDERCOVER POLICE OFFICER No. C0212 is and was at all times relevant herein, assigned to the Narcotics Borough Bronx.
8. UNDERCOVER POLICE OFFICER No. C0212 is being sued in her individual and official capacity.
9. DETECTIVE DAVID DEMELIA, Shield No. 2215, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. DETECTIVE DAVID DEMELIA, Shield No. 2215, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.
11. DETECTIVE DAVID DEMELIA, Shield No. 2215, is being sued in his individual and official capacity.
12. LIEUTENANT CHRISTOPHER VONKESSEL is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. LIEUTENANT CHRISTOPHER VONKESSEL is and was at all times relevant herein, assigned to Narcotics Borough Bronx.
14. LIEUTENANT CHRISTOPHER VONKESSEL is being sued in his individual and official capacity.
15. DETECTIVE SIMON LAINE is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
16. DETECTIVE SIMON LAINE is and was at all times relevant herein, assigned to Narcotics Borough Bronx.
17. DETECTIVE SIMON LAINE is being sued in his individual and official capacity.

18. UNDERCOVER POLICE OFFICER No. 336 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. UNDERCOVER POLICE OFFICER No. 336 is and was at all times relevant herein, assigned to the Narcotics Borough Bronx.

20. UNDERCOVER POLICE OFFICER No. 336 is being sued in her individual and official capacity.

21. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers John Does #1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

26. In accordance with New York State law and [General Municipal Law Section 50](#), plaintiff testified at a hearing held pursuant to [General Municipal Law Section 50-H](#) on February 28, 2017.

27. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

28. This action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#), involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

30. On October 24, 2015, at approximately 3:00 a.m., plaintiff was lawfully present in the vicinity of 166th Street and Sheraton Avenue, Bronx, New York, when the defendant police officers unlawfully approached plaintiff, slammed him against a wall without legal justification and stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or any legal justification.

31. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

32. Suddenly, without provocation or legal justification, the defendant police officers slammed plaintiff against a wall and grabbed his arms and shoulders in aggressive manner, causing plaintiff to experience severe pain in his right shoulder.

33. Plaintiff was unlawfully stopped, questioned, and frisked without legal justification or probable cause.

34. The officers did not recover any illegal drugs, weapons or contraband from plaintiff or from his possession, custody, or control.

35. Nevertheless, plaintiff was unlawfully handcuffed by defendant officers without legal justification or probable cause.

36. Plaintiff was transported by the defendant police officers to the 44th Precinct where he was photographed, fingerprinted and then placed in a holding cell by the defendants.

37. At the precinct, defendants conducted a strip search of plaintiff even though they did not recover any weapons, drugs, or contraband from plaintiff during the initial search, and had no reason to believe plaintiff was hiding contraband on his person, causing humiliation and emotional distress.

38. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

39. After several hours in custody, plaintiff was transported from the 44th Precinct to Bronx County Central Booking and placed in a holding cell.

40. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff participated in a narcotics sale, which allegedly led them to believe that plaintiff committed a crime.

41. Additionally, defendant Detective **Abdiel Anderson** signed a criminal court complaint under penalty of perjury that contained false, misleading and incomplete allegations against plaintiff and that was used to initiate a criminal prosecution against plaintiff and charge him with crimes he did not commit.

42. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

43. On October 25, 2015, after being unlawfully detained for approximately 36 hours, plaintiff was arraigned in Bronx County Criminal Court and charged with crimes he did not commit

44. The officers maliciously and unlawfully charged plaintiff with Criminal Sale of a Controlled Substance in the Third Degree, Criminal Possession of a Controlled Substance in the Third Degree, and Criminal Possession of a Controlled Substance in the Seven Degree, without probable cause or legal justification.

45. The judge set bail in the amount of \$2,500, which plaintiff could not post, and plaintiff was remanded to Department of Corrections custody on Riker's Island.

46. On October 27, 2015, after being unlawfully imprisoned for approximately 3 days, plaintiff was able to post bail and was released from custody.

47. Thereafter, plaintiff appeared in court on approximately 8 occasions before all charges were terminated in plaintiffs favor, dismissed and sealed in their entirety on June 20, 2016.

48. Some of the police officer defendants observed the violation of plaintiffs rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, malicious prosecution, assault, battery, excessive force, strip search, and denial of due process and the right to a fair trial against plaintiff.

49. The unlawful search, false arrest, and false imprisonment, strip search, denial of a right to fair trial, malicious prosecution, assault, battery, and excessive force used against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, strip searched, falsely arrested, falsely imprisoned, subjected to malicious abuse of process, and maliciously prosecuted plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION False Arrest and False Imprisonment

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION Unlawful Stop, Question, and Frisk

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

61. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION Unlawful Search

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

68. Defendants lacked probable cause to search plaintiff.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION Malicious Prosecution

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

75. Defendants commenced and continued a criminal proceeding against plaintiff.

76. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

77. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

78. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

81. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The use of excessive force by defendants slamming plaintiff against a wall and grabbing his arms and shoulders in aggressive manner and by using unreasonable force throughout the course of plaintiff's arrest is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

84. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION Assault

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION Battery

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner slammed plaintiff against a wall and grabbed his arms and shoulders in aggressive manner without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

94. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION Negligence

98. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. Defendants owed a duty of care to plaintiff.

100. To the extent defendants claim that the injuries to plaintiffs persons by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by accidentally and negligently slamming plaintiff against a wall and grabbing his arms and shoulders in aggressive manner, and assaulting and battering plaintiff.

101. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

102. All of the foregoing occurred without any fault or provocation by plaintiff.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION Negligent Infliction of Emotional Distress

106. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

107. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Damon Bignon. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

108. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

109. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

110. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

111. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

112. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION Denial of Right to Fair Trial/Due Process

113. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein

114. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

115. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

116. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

117. In withholding/creating false evidence against plaintiff Damon Bignon, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

118. As a result of the foregoing, plaintiff Damon Bignon, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

120. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

121. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION Unlawful Strip Search

122. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 121 with the same force and effect as if more fully set forth at length herein.

123. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

124. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and he sustained great emotional injuries.

125. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

126. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRTEENTH CAUSE OF ACTION Negligent Hiring, Retention, Training and Supervision

127. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 126 with the same force and effect as if more fully set forth at length herein.

128. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

129. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTEENTH CAUSE OF ACTION Failure to Intervene

130. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 129 with the same force and effect as if more fully set forth at length herein.

131. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

132. Defendants failed to intervene to prevent the unlawful conduct described herein.

133. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

134. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

135. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

136. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

137. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

138. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Damon Bignon demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate

under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to [42 U.S.C. § 1988](#).

Dated: New York, New York September 17, 2017

By: /s/

STUART E. JACOBS

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